

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

**COMPLAINANTS’ MOTION FOR AN ENLARGEMENT OF TIME TO MOVE FOR
LEAVE TO SEEK DISCOVERY AND FOR OTHER RELIEF**

Pursuant to Rules 69, 71 and 102 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this motion for an enlargement of time to move for leave to seek discovery until twenty-two (22) days after the issuance of a decision by the Commission with respect to complainants’ Exceptions to the Presiding Officer’s Initial Decision Partially Dismissing the Complaint of January 17, 2017. In the alternative, and to the extent appropriate, Complainants move for a stay of the instant proceedings pending the Commission’s ruling upon Complainants forthcoming Exceptions to the Presiding Officer’s Initial Decision Partially Dismissing the Complaint, dated January 17, 2017.

RELEVANT PROCEDURAL HISTORY

On August 5, 2016, complainants MAVL CAPITAL, INC., IAM & AL GROUP INC., and MAXIM OSTROVSKIY initiated this proceeding against respondents Marine Transport

Logistics, Inc. (MTL) and Dmitry Alper alleging that Respondents violated sections 41102(c), 41104(3) and 41104(10) of the Shipping Act, and the Commission's regulations at Part 515, in connection with certain vehicles owned by Complainants, to wit: a 2006 Mercedes SL65, a 2011 Porsche Panamera, and three motorcycles- a 2004 Harley Davidson FXDXI, a 2007 Harley Davidson FXD, and a 2000 Harley Davidson XL883.

On August 11, 2016, the Secretary of the Commission issued a Notice of filing of Complaint and Assignment assigning this proceeding to the Office of the Administrative Law Judges. Respondent Alper filed his Answer on August 31, 2016, and respondent MTL filed its Answer on September 6, 2016.

On September 15, 2016, the Presiding Officer *sua sponte* issued an Order directing Complainants to show cause by October 3, 2016, "why the allegations in their Complaint regarding the 2006 Mercedes SL65 and [the Harley Davidson motorcycles] should not be dismissed for lack of subject matter jurisdiction or for failure to state a claim upon which relief can be granted." Thereafter the parties submitted their respective briefs in response to the Order to Show Cause, and the Presiding Officer issued the Initial Decision Partially Dismissing the Complaint on January 17, 2017 (the "ID"). Pursuant to the ID, complainants' Exceptions to the ID are due on or before February 8, 2017.

Contemporaneously with the issuance of the ID, on January 17, 2017 the Presiding Officer also issued an Order Modifying the August 16, 2016 Initial Order as it pertains to discovery herein. Pursuant to the Presiding Officer's directives as set forth in the modified Order, "[o]n or before February 2, 2017, a party seeking to take additional discovery in this proceeding [in addition to that already adduced in a related matter pending in the U.S. District Court for the Eastern District of New York] must file a motion seeking leave of [the Presiding Officer] to take the discovery".

ARGUMENT

Good Cause Exists for Enlarging the February 2, 2017 Due Date for the Filing of Discovery Related Motions in This Matter and/or for a Stay of the Proceedings Herein

As set forth above, complainants' Exceptions to the ID are due to be filed on or before February 8, 2017, within which complainants will appeal the Presiding Officer's findings pertaining to complainants' 2006 Mercedes SL65. In the event that the Commission determines that complainants are ultimately allowed to proceed with their claims regarding the Mercedes, it is respectfully submitted that complainants will require additional discovery not taken in the Eastern District of New York matter, which may require a motion to the Presiding Officer for leave to take said discovery. It is complainants' intent to take the depositions of the respondents and various non-parties to this matter, none of which were taken in the ongoing Federal litigation. Additionally, complainants desire to proceed with expert discovery herein, also not taken in the Federal matter.

Inasmuch as the justification for proceeding with the aforementioned discovery is more properly reserved for the motions which the Presiding Officer directed to be filed on or before February 2, 2017, complainants simply wish, at this juncture, to preserve their right to do so in the event that complainants are ultimately allowed to proceed with their claims regarding the Mercedes. An enlargement of time for the filing of said motions would avoid the unnecessary expense and additional burden on the Presiding Officer and all parties involved arising out of the potential for piecemeal discovery with respect to the two automobiles described above. In the same vein, it is respectfully submitted that a stay of this entire proceeding, pending the Commission's decision on complainants' Exceptions would also be appropriate, as it would avoid the duplication of discovery related activity in the event that complainants are ultimately allowed to proceed with their claims regarding the Mercedes.

The undersigned has conferred with counsel for respondents who have both stated that their position with respect to the instant application is as follows:

“We consent to the 22-day enlargement of time for the February 2, 2017 due date for the filing of discovery motions, but our consent is contingent upon the February 8, 2017 due date for the filing of exceptions remaining in place.”

Copies of the emails from the undersigned to respondents’ counsel requesting respondents’ consent to the relief set forth herein, as well as respondents’ responses are annexed hereto as Appendix “1”.

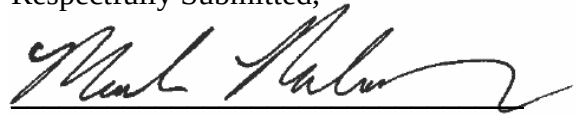
RELIEF REQUESTED

It is therefore respectfully requested that the Presiding Officer now issue an Order enlarging the February 2, 2017 due date for the filing of discovery related motions in this matter until twenty-two (22) days after the issuance of a decision by the Commission with respect to complainants’ Exceptions, and/or staying the proceedings herein pending the Commission’s decision on complainants’ Exceptions to the ID.

WHEREFORE, it is respectfully requested that Complainants’ motion be granted in its entirety.

Dated: January 26, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in dark ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

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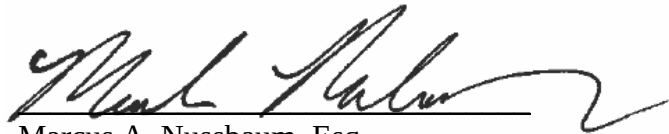
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR AN ENLARGEMENT OF TIME TO MOVE FOR LEAVE TO SEEK DISCOVERY AND FOR OTHER RELIEF** and **APPENDIX** upon Respondents' Counsel at the following address:

Montgomery McCracken Walker & Rhoads LLP
437 Madison Avenue, 29th Floor
New York, NY 10022
Attn: Eric Chang, Esq.
Attn: Stephen H. Vengrow, Esq.

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by first class mail, postage prepaid, and by email to: EChang@mmwr.com; svengrow@mmwr.com; and PeterCipparulo@cipplaw.com.



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Dated: Brooklyn, New York
January 26, 2017